

**IN THE CIRCUIT COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA**

**COLONIAL MANOR MHC
HOLDINGS, LLC,**

Plaintiff/Counter-Defendant,

vs.

CASE NO.: 2021-CA-4553

LORI SKIPPER,

Defendant/Counter-Plaintiff.

_____/

PLAINTIFF'S AMENDED MOTION TO DISMISS DEFENDANT'S COUNTERCLAIM

Pursuant to Florida Rule of Civil Procedure 1.140(b), Colonial Manor MHC Holdings, LLC ("Plaintiff" or "Colonial Manor") moves to dismiss Defendant Lori Skipper's ("Defendant") Amended Counterclaim. In support, Colonial Manor states as follows:

Background

1. On November 4, 2021, Colonial Manor commenced this suit by filing its Complaint in the Twelfth Judicial Circuit. Colonial Manor's Complaint alleges three counts based on Defendant's breach of fiduciary duty and breach of contract. Colonial Manor's Complaint also seeks declaratory and injunctive relief.

2. Colonial Manor filed suit against Defendant following Defendant's destruction of Colonial Manor's company property and use of confidential resident information in violation of Defendant's Employment Agreement with Colonial Manor. Defendant intentionally and materially breached her Employment Agreement with Colonial Manor and has used her knowledge of Colonial Manor's confidential business information to Colonial Manor's detriment.

Defendant's actions have also circumvented and interfered with Colonial Manor's business relationships and relationships with its tenants.

3. On November 23, 2021, Defendant filed an Answer to Colonial Manor's Complaint wherein she admitted to destroying Colonial Manor's company property. *Answer*, ¶ 17.

4. In addition to her Answer, Defendant filed a Counterclaim which appeared to allege three-counts: (1) gender discrimination pursuant to Florida Statute section 760.07; (2) Colonial Manor's Complaint contained false statements pursuant to Florida Statute section 837.06; and (3) Colonial Manor violated Florida Statute section 723.054.

5. On December 13, 2021, Colonial Manor filed a Motion to Dismiss Counterclaims due to multiple deficiencies in Defendant's pleading including failure to state a cause of action and failure to exhaust her administrative remedies.

6. On December 27, 2021, Defendant filed an Amended Answer to Plaintiff's Complaint ("Amended Answer"), Amended Counterclaim, and a Motion to Amend Defendant's Answer and Cross Complaint ("Motion to Amend").

7. Defendant's Motion to Amend is seemingly a misnomer as Defendant seeks to "dismiss" Colonial Manor's initial Motion to Dismiss Counterclaims and seeks leave to amend her Answer and Counterclaim although both the Amended Answer and Amended Counterclaim have already been filed with this Court.

8. Colonial Manor views Defendant's Motion to Amend as unnecessary to the extent it is a response to Colonial Manor's initial Motion to Dismiss because Defendant's filing of the Amended Counterclaim is permissible pursuant to Florida Rule of Civil Procedure 1.190(a). Therefore, Colonial Manor's initial Motion to Dismiss is rendered moot by the filing of the

Amended Counterclaim, a response to the Motion to Dismiss is unnecessary, and Colonial Manor files this Amended Motion to Dismiss accordingly.

9. Defendant's Amended Counterclaim appears to continue to allege three-counts – only making substantive changes to Count I. The Amended Counterclaim alleges: (1) gender discrimination pursuant to Florida Statute section 760.11 and damages pursuant to 42 U.S.C. section 1981a; (2) Colonial Manor's Complaint contains false statements pursuant to Florida Statute section 837.06; and (3) Colonial Manor has violated Florida Statute section 723.054.

10. Defendant's amended pleadings attempt to resolve some of the issues raised in Colonial Manor's initial Motion to Dismiss; however, Defendant's Amended Counterclaim must be dismissed because the claims are still defectively pleaded, fail to state a cause of action, and Defendant failed to exhaust her administrative remedies.

11. In sum, the Amended Counterclaim fails to cure the substantive concerns highlighted in Colonial Manor's initial Motion to Dismiss. As a result, dismissal remains appropriate.

Argument

I. Standard of Review

“Whether a complaint should be dismissed is a question of law.” *City of Gainesville v. State of Fla, Dep’t of Transp.*, 778 So. 2d 519, 522 (Fla. 1st DCA 2001). “A motion to dismiss for failure to state a cause of action admits all well pleaded facts as true, as well as reasonable inferences that may arise from those facts.” *Griffis v. Bridle Oaks Estate, LLC*, No. 5D20-2682, 2021 WL 4341305, *1 (Fla. 5th DCA Sept. 24, 2021) (*citing Palumbo v. Moore*, 777 So. 2d 1177, 1178 (Fla. 5th DCA 2001)); *Nat Weaver, Inc. v. Fencl*, 701 So. 2d 121, 121 (Fla. 5th DCA 1997). “Those allegations are then reviewed in light of the applicable substantive law to determine the

existence of a cause of action.” *Blue Supply Corp. v. Novos Electro Mech., Inc.*, 990 So. 2d 1157, 1159 (Fla. 3d DCA 2008) (citing *Peeler v. Indep. Life & Accident Ins. Co.*, 206 So. 2d 34, 36 (Fla. 3d DCA 1967)).

Similarly, in determining a motion to dismiss for lack of standing, the court must confine its review to the four corners of the complaint, draw all inferences in favor of the pleader, and accept all well-pled allegations in the complaint as true. *Llano Fin. Grp., LLC v. Yespy*, 228 So. 3d 108, 111 (Fla. 4th DCA 2017). “Mere legal conclusions are not sufficient unless substantiated by allegations of ultimate fact. Every fact essential to the cause of action must be stated distinctively, definitely and clearly.” *Loving v. Viecelli*, 164 So. 2d 560, 561 (Fla. 3d DCA 1964) (citing *Ocala Loan Co. v. Smith*, 155 So. 2d 711, 716 (Fla. 1st DCA 1963)).

II. Each of Defendant’s Amended Counterclaims are Deficient and Fail to Comply with the Florida Rules of Civil Procedure

Rule 1.110 of the Florida Rules of Civil Procedure requires Defendant to plead “a short and plain statement of the ultimate facts showing that the pleader is entitled to relief.” Fla. R. Civ. P. 1.110(b)(2). Defendant’s Amended Counterclaim fails to comply with this pleading requirement because it impermissibly combines pleadings and lacks the allegations of ultimate fact needed to support the claims for relief. Rather, Defendant has used her claims as an opportunity to air her general grievances and otherwise make broad assertions and legal conclusions. Defendant attempted to resolve the underlying deficiencies by simply quoting statutes and rules – this is not enough to comply with the pleading requirements. Therefore, each of Defendant’s Counterclaims must be dismissed.

III. Count I: Discriminatory Actions Based on Gender

Defendant’s individual counts are also deficient and provide a further basis for dismissal. Defendant’s Amended Counterclaim Count I appears to allege that Defendant suffered from

gender discrimination during her employment with Colonial Manor. In particular, Defendant makes the broad assertion that she was an employee of Colonial Manor and is being subjected to gender discrimination seemingly pursuant to Florida Statute sections 760.07 and 760.11 and seeks damages pursuant to 42 U.S.C. section 1981a now that Colonial Manor has filed suit against her. *Amended Counterclaim*, ¶¶ 2-7.

a. Failure to Satisfy Conditions Precedent

As an initial matter, Defendant has failed to satisfy the conditions precedent to bring this claim. Florida Statute section 760.11 requires that “[a]ny person aggrieved by a violation of ss. 760.01-760.10” file a complaint with the Florida Commission on Human Relations (“FCHR”) prior to filing suit. § 760.11(1), Fla. Stat. (2022). Defendant has failed to do so and that is why she does not allege that all conditions precedent to bringing her claims have been satisfied. *Compare Complaint*, ¶ 27.

b. Failure to State a Claim

Moreover, even if Defendant had properly filed a complaint with the FCHR (which Colonial Manor expressly denies), Defendant has failed to state a claim upon which relief can be granted. To state a claim pursuant to Chapter 760, Defendant must allege that (1) she was a member of a protected class; (2) she was qualified for her position; (3) she was subjected to an adverse employment action; and (4) she was treated less favorably than similarly situated individuals outside her protected class. *Valenzuela v. GlobeGround N. Am., LLC*, 18 So. 3d 17, 22 (Fla. 3d DCA 2009).

It is not disputed that Defendant is a member of a protected class; however, Defendant has failed to allege any discriminatory action that was taken against her as an employee of Colonial Manor. Rather, Defendant’s Amended Counterclaim simply points to the fact that Colonial Manor

has filed suit as the alleged discriminatory action even though Defendant is no longer an employee of Colonial Manor. *Amended Counterclaim*, ¶ 3. Additionally, Defendant concedes that she left her position with Colonial Manor to accept a position with a different facility. *Amended Counterclaim*, ¶ 4. As a result, Defendant has failed to allege any facts that state a claim for employment discrimination pursuant to Chapter 760, Florida Statutes.

Similarly, Defendant has failed to state a claim for punitive damages in cases of intentional discrimination in employment pursuant to 42 U.S.C. section 1981a. Defendant has not stated a claim under Title VII which would allow for punitive damages in conjunction with 42 U.S.C. section 1981a. In fact, Defendant does not refer to any claims pursuant to Title VII at all. However, even if Defendant had properly filed a complaint containing Title VII claims (which Colonial Manor expressly denies), Defendant is not entitled to punitive damages because she cannot show that Colonial Manor acted with malice or reckless disregard in any of its actions. 42 U.S.C. § 1981a(b)(1). Count I must accordingly be dismissed.¹

IV. Count II: Making False Statements

In Count II, Defendant alleges that Colonial Manor's Complaint contains false and misleading statements in violation of Florida Statute section 837.06. In sum, Defendant's second count attempts to raise criminal issues in a civil action. Section 837.06 is a criminal statute providing that whoever knowingly makes a false statement in writing with the intent to mislead a public servant is guilty of a second-degree misdemeanor. § 837.06, Fla. Stat. (2022). However,

¹ Notably, Defendant briefly mentioned "The Federal Housing Act" in paragraph 7. It is unclear what Defendant is referring to as she does not expand on this allegation nor does she refer to a specific statute. As a result, it is unclear if this is a typographical error wherein Defendant intended to refer to Chapter 760, Florida Statutes, Chapter 723, Florida Statutes, or some other rule of law. Nonetheless, it is clear that Defendant has failed to allege a claim under any "Federal Housing Act" because Defendant provides no facts or further information to support such a claim.

no private right of action exists for Defendant under this criminal statute. “Criminal statutes provide no basis for civil liability.” *Kerr v. Wells Fargo Bank*, No. 2:15-cv-327-FtM-38MRM, 2015 WL 8042272, *4 (M.D. Fla. Dec. 7, 2015) (citing *Otto v. Hillsborough Cnty., Fla.*, No. 8:12-cv-1515, 2013 WL 2456095, *4 (M.D. Fla. June 6, 2013)). As a result, Defendant lacks standing to enforce this penal statute and, “[o]nly a federal or state prosecutor can file a criminal charge against a person or entity.” *Id.* Therefore, Count II must be dismissed with prejudice.

V. Count III: Mobile Home Park Tenancies

a. Failure to State a Claim

Lastly, in Count III, Defendant appears to allege that Colonial Manor has violated Florida Statute section 723.054. Section 723.054 prohibits any bylaw, rental agreement, regulation, or rule pertaining to a mobile home park to infringe upon certain rights of mobile home owners or tenants to peaceably assemble or canvass. *See* § 723.054, Fla. Stat. (2022). Defendant has failed to allege any facts that indicate Colonial Manor has implemented any bylaw, rental agreement, regulation, or rule that infringes upon any rights of its mobile home owners or tenants. In support of her allegations Defendant refers to an “Exhibit 1” which consists of a letter addressed to the residents of Colonial Manor. The letter provides no evidence that Colonial Manor violated section 723.054, Florida Statutes. Rather, the letter evidences Colonial Manor’s attempts to comply with the alternative dispute resolution process outlined in Chapter 723, Florida Statutes. Simply put, Defendant has still failed to state a claim because she failed to allege any facts that indicate the mobile home owners and tenants – including Defendant herself – are prohibited from assembling, communicating, or canvassing at Colonial Manor.

b. Defense Asserted as a Counterclaim

In connection with Defendant's third count, Defendant improperly attempts to assert a defense to Colonial Manor's Complaint as a counterclaim. *Amended Counterclaim*, ¶ 18. Defendant alleges in her Counterclaim that she has been retaliated against pursuant to Florida Statute section 723.0615 and seeks damages based on these alleged retaliatory actions. *Id.* This is improper. Section 723.0615 is a defense available to a home owner in any action for possession, not a basis for a separate claim. As a result, Defendant's Count III is wholly improper and impermissible and must be dismissed.

Conclusion

Defendant's Amended Counterclaim is still not sufficiently pleaded for a multitude of reasons and, as a result, must be dismissed. Defendant's Amended Counterclaim is defective in failing to state any facts upon which relief may be granted, improperly asserting defenses as counterclaims, and attempting to assert criminal statutes and penalties where no private right of action exists. Therefore, Colonial Manor respectfully requests that this Court dismiss Defendant's Amended Counterclaim in full.

WHEREFORE, Plaintiff/Counter-Defendant Colonial Manor, by and through its undersigned counsel, moves this Court to dismiss Defendant/Counter-Plaintiff Lori Skipper's Amended Counterclaim and grant any other such relief as may be deemed appropriate by this Court.

Respectfully submitted this 7th day of January, 2022.

/s/ Jordann Wilhelm

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been served by electronic mail to Lori Skipper at lorilyn1985@gmail.com, and U.S. Mail to 900 9th Ave. East, Palmetto, FL 34221, on this 7th day of January, 2022.

/s/ Jordann Wilhelm

JORDANN WILHELM